

[2. 44 & 45 Vict. c. 41, s. 33. — By a recent enactment every trustee appointed by any Court of competent jurisdiction has as well before as after the trust property becomes by law, or by assurance, or otherwise, vested in him, the same powers, authorities, and discretions, and may in all respects act as if he had been originally nominated a trustee by the instrument creating the trust; and this enactment applies to appointments made either before or after the commencement of the Act (e).]

3. **Release with intention of disclaiming.** — We have seen that if one trustee *disclaims* in the strict sense of the word, the power will not be extinguished, but will survive to the co-trustee; but, according to the old doctrine, if a trustee instead of *disclaiming* had *assigned* the estate, that was a virtual acceptance of the trust, and then the conveyance of the retiring trustee did not pass the power into the hands of the continuing trustee (f); but at the present day it seems a release with the intention of disclaimer would have all the operation of a formal and actual disclaimer (g).

4. **Whether the power will remain in the trustee after alienation of the estate.** — Though an assignment of the *estate* will not carry the *power* to the assignee, it does not follow [*609] that the power will remain in the assignor, so as to be transmissible to his representative; for where it was the settlor's intention that the *estate and power should be coupled together*, the trustee, by severing the union through the alienation of the estate, may intercept the execution of the power by the representative. Thus [where, prior to the Conveyancing and Law of Property Act, 1881, an estate was] limited to A. and his heirs upon a trust to be executed by A. and his *heirs*, and A. in his lifetime conveyed away the estate, or devised it by his will, it was held that the heir of A. could not execute the power (a); for the heir was

[(e) 44 & 45 Vict. c. 41, s. 33. This section takes the place of the corresponding section in Lord Cranworth's Act, 23 & 24 Vict. c. 145, s. 27, which was repealed by 44 & 45 Vict. c. 41.]

(f) *Doyley v. Attorney-General*, 2 Eq. Ca. Ab. 194; *Crewe v. Dicken*, 4 Ves. 97.

(g) *Supra*, p. 196.

(a) *Wilson v. Bennett*, 5 De G. & Sm. 475; and see *Re Burt's Estate*, 1 Drew. 319.